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File No.: EXP202307481 (AI/00289/2023)

RESOLUTION ON THE ARCHIVING OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following:

FACTS

FIRST: On 02/06/23, this Agency received a complaint from Ms. A.A.A., through the EUROPEAN COMMISSION INTERNAL MARKET INFORMATION SYSTEM (IMI - Austria). The complaint was directed against the entity CAI-XABANK, S.A., with CIF: A08663619, owner of the website, ***URL.1, (hereinafter, the respondent), for the alleged violation of data protection regulations: Regulation (EU) 2016/679 of the European Parliament and of the Council, of 27/04/16, regarding the Protection of Natural Persons with regard to the Processing of Personal Data and the Free Movement of such Data (GDPR) and Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (LOPDGDD), and against Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI).

The reasons for the complaint regarding the breaches in the Cookie Policy of the website in question were as follows:

- The "Reject Cookies" option only in the second layer:

While the banner provides a button to accept all relevant processing activities and a button that allows the data subject to access other options, the data controller deliberately hid the option to reject the relevant processing activities.

To reject the processing, the complainant had to click on the button that leads to the second layer. In other words: the complainant can accept the relevant processing activities with one click in the first layer, but needs two (or more) clicks to deactivate and reject the relevant processing activities in the second layer.

The controller has deliberately chosen to hide a rejection option in the first layer of the banner. There is no logical, technical, or ethical reason to hide the rejection option beyond confusing the data subjects or making rejections more burdensome and unlikely.

- Design in the link:

The button that leads to the option to reject the relevant processing activities uses a link design (for example, bold text, underlined or highlighted), while the "accept" button uses a typical design (box with text in it). Accepting and continuing to browse is a blue button with white text, while "configure or reject its use" is just a link in the text of the banner, far from the "accept" button.

- Withdrawal of consent is not as easy as granting consent:

The option to accept the relevant processing activities occupies a prominent place in the banner; however, the complainant could not easily find the option to withdraw consent. There was no prominent "withdrawal" banner or any similar option.

SECOND: On 05/07/23, in accordance with the provisions of Article 65.4 of the LOPDGDD, this Agency forwarded the complaint to the respondent for analysis and to report back within one month on the matters raised in the complaint.

THIRD: On 18/07/23, the respondent sent a response to this Agency stating, among other things, the following:

"This complaint is based on the fact that the cookie consent banner does not include a cookie rejection button in the first layer, but rather includes a link to configure or reject the use of cookies in a second layer.

In relation to this complaint, we must indicate that, in our understanding, the configuration of the cookie banner on the aforementioned website aligns with the requirements and criteria set by the Spanish Agency for Data Protection and more specifically with the so-called 'third option' identified in the Guide on the use of cookies, issued by the Agency in June 2022, which is defined as the possibility of offering the user two options, one to expressly accept the cookies used and another to configure or reject the

use of cookies (page 21 of the aforementioned Guide).

Attached below is a detail of the cookie usage banner format to which we refer: If the user clicks on 'MORE INFORMATION' or 'CONFIGURE OR REJECT ITS USE' (note that these links are included in uppercase, underlined, and in a different color highlighting them), the user is directed to the second layer, the cookie policy, where they can configure the use of cookies at their own discretion (**URL.1). By default, all non-essential cookies appear unchecked, so that the user can individually select those they wish to install. If none are selected, all non-essential cookies are deemed rejected (by clicking on the 'Save and Continue' button).

In relation to the above, we must additionally inform you that the previous banner and the configuration regarding the use of cookies were reviewed by Autocontrol in May 2023, within its 'Cookie advice' service, in which it was highlighted that this configuration of the cookie banner and the mechanisms for acceptance and for configuring/rejecting the use of cookies were aligned with the applicable criteria mentioned above.

For all the above reasons, we consider that there is no basis for the complaint filed against CaixaBank, as the banner on the use of cookies and its...

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The configuration is aligned with the applicable criteria defined by the Spanish Agency for Data Protection.

The configuration regarding the use of cookies has been reviewed and adapted to the criteria published by the Spanish Agency for Data Protection as these have been updated. The last relevant adaptation of the cookie banner and the cookie policy was made in 2022 in response to the adaptation to the Cookie Use Guide of June 2022, having also conducted periodic reviews with Autocontrol, the last of which was in May 2023, as previously indicated.

FOURTH: On 23/08/23, the Director of the Spanish Agency for Data Protection issued an agreement to admit the claim filed, in accordance with Article 65 of the LPDGDD, upon noting possible rational indications of a violation of the rules within the competencies of the Spanish Agency for Data Protection.

FOURTH: On 19/09/23, this Agency accessed the website, **URL.1, recording the following characteristics regarding its "Cookie Policy":

1.- Regarding the use of non-essential cookies, before the user gives their consent:

Upon entering the website for the first time, after clearing the terminal equipment of browsing history and cookies, without accepting new cookies or taking any action on the website in question, the use of the following cookies is detected:

Cookie

Domain

Description

utag_main

**DOMAIN.1

This is a cookie provided by Tealium that stores a unique identification, records a timestamp of when the user visits the site, the number of pages viewed, and the number of visits to the site. This is done for a better user experience. According to **URL.2, this cookie is a technical cookie.

userAgentInfo

**DOMAIN.1

This cookie is identified with cookies whose pattern is "userXXX". "User ID" is a unique, fixed string without personally identifiable information, used to represent a user. It allows for the analysis of session groups across different devices. According to **URL.2, this cookie is a technical cookie.

__bg_cxbnk

__fpcachecc

***DOMAIN.1

Cookie whose purpose has not been identified by this Agency.

2.- Regarding the cookie information banner on the first layer:

Upon entering the website for the first time, after clearing the terminal equipment of browsing history and cookies, without taking any action on the website, a cookie information banner appears at the bottom of the main page with the following message:

Your privacy is important to us

CaixaBank uses its own and third-party cookies to analyze your browsing for statistical, personalization (e.g., language), and advertising purposes, including showing you personalized advertising based on a profile created from your browsing.

Click for <> or to <>. You can also accept all cookies by clicking the "Accept and continue browsing" button.

<>

a.- If you choose to accept cookies that are not technical or necessary by clicking on the option <>, it is verified that the website starts to use the following own and third-party cookies that are not technical or necessary:

Cookie

Domain

dextp

XXXXXXXXX

ev_sync_dd

XXXXXXXXX

AMCV_

XXXXXXXXX

s_vi

XXXXXXXXX

s_ecid

XXXXXXXXX

demdex

XXXXXXXXX

prefix

XXXXXXXXX

VOYAGERID

XXXXXXXXX

dpm

XXXXXXXXX

s_fid

XXXXXXXXX

s_cc

XXXXXXXXX

mustShowFormExecuted

XXXXXXXXX

s_nr

XXXXXXXXX

s_vi__s

XXXXXXXXX

dpm

XXXXXX

TDCPM

XXXXXX

TDID

XXXXXX

dextp
XXXXXX
demdex
XXXXXX

b.- If you wish to continue browsing without authorizing the use of cookies that are not technical or necessary, you must first access the second layer by clicking on the option <>, through which the website displays a control panel where, among other information, the following legend appears:

***URL.3

“(…)

OWN COOKIES: These are those for which CaixaBank S.A. is responsible for the information being processed. On this website, we use our own cookies for the following purposes:

– Personalization: they allow personalizing certain features of the website to differentiate the experience of one user from that of others (for example, defining the browsing language and background.

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of the screen, remembering the last searches made in the search engine, etc.).

_ Analysis: they collect information about user behavior during browsing (most visited pages, time spent on the website, etc.) to introduce improvements in the content and services offered based on the analysis of that information (for example, optimizing response times in the most visited areas in CaixaBankNow).

THIRD-PARTY COOKIES: These are those for which third parties unrelated to CaixaBank S.A. are responsible for the information being processed. Below, both the third parties and the purposes for which the information is used are detailed:

_ Personalization: they allow for the personalization of certain features of the website to differentiate one user's experience from that of others (for example, defining the browsing language, remembering the last searches made in the search engine, etc.).

- Adobe Target More information
- YouTube More information
- Adobe More information
- Adobe Audience Manager More information
- Trade Desk More information
- Sizmek More information

_ Analysis: they collect information about user behavior during browsing (most visited pages, time spent on the website, etc.) to introduce improvements in the content and services offered based on the analysis of that information.

- Adobe Target More information
- YouTube More information
- Adobe More information
- Facebook More information
- Adobe Audience Manager More information
- Trade Desk More information
- Sizmek More information
- Adobe Analytics More information

_ Behavioral advertising: they store information about user behavior, obtained by observing their browsing habits (for example, which pages they visit), to develop a specific profile that allows them to show personalized advertising based on their tastes and interests.

- Doubleclick More information
- Google More information

- Facebook More information
- Adobe Audience Manager More information
- Linkedin More information
- Trade Desk More information
- Sizmek More information

It is verified that the groups of cookies (own and third-party) that are not technical or necessary are unchecked when accessing the control panel. For granular management of cookies, the user can check the groups of cookies they wish to allow or not check any.

Afterwards, the website offers the following options for continuing to browse once the user has decided which cookies to allow or not:

- If you wish to reject all cookies that are not technical or necessary, you must click directly on the option <>
- If you wish to allow the use of a specific group of cookies that are not technical or necessary, once the group of cookies is accepted, you must also click on the option <>.
- There is also the possibility of accepting all cookies that are not technical or necessary by clicking on the option <> (...).

3rd.- Regarding the information provided in the "Cookie Policy":

If you access the "Cookie Policy" through the link available in the cookie information banner <> or through the link available at the bottom of the main page, the website redirects the user to a new page ***URL.4 where information is provided about: what cookies are; what the information collected through cookies is used for; what types of cookies exist and which cookies are used by the website. It also provides information on how to manage cookies through the mechanisms available in the browser installed on the terminal equipment.

Alongside this information, the cookie control panel mentioned in the previous point appears, where the different groups of cookies can be managed granularly.

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4º.- Regarding the possibility of modifying the consent given for cookies, at any time during web browsing.

If the user has given initial consent for the website to use cookies that are not technical or necessary and wishes, at a certain moment, to modify that consent, there is the possibility to access the cookie control panel located permanently at the bottom of the page <>.

If this option is clicked, the previously displayed cookie control panel appears with the groups of cookies that have been allowed marked.

The user can uncheck all groups of cookies, or only those they do not wish to use again. After that, they must click on the <> option, ensuring that the website stops using the cookies that have been rejected.

LEGAL GROUNDS

I.

Competence.

Regarding the "Cookie Policy" of the website ***URL.1, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this Procedure, in accordance with the provisions of art. 43.1, second paragraph, of the LSSI.

The fourth additional provision of the LOPDGDD establishes, regarding the "Procedure in relation to the competencies attributed to the Spanish Agency for Data Protection by other laws," that: "The provisions in Title VIII and its development regulations shall apply to the procedures that the Spanish Agency for Data Protection must process in the exercise of the competencies attributed to it by other laws."

II.-

Preliminary Note

The Spanish Agency for Data Protection has updated the Guide on the use of cookies to adapt it to the Guidelines 03/2022 on misleading patterns from the European Data Protection Board (EDPB).

The European Data Protection Board published in February 2023 the Guidelines 03/2022 on misleading patterns in social networks. The Agency incorporates into the new version of the Guide the EDPB's criterion, which states that the actions of accepting or rejecting cookies must be presented in a prominent place and format, and both actions must be at the same level, without it being more complicated to reject them than to accept them. The Guide includes new examples of how these options should be displayed, providing indications on, among others, color, size, and location where they appear.

The criteria set out in the Guide must be implemented by January 11, 2024, thus establishing a transitional period of six months to introduce the necessary changes for the use of cookies.

Meanwhile, the criteria established in the Guide on the use of cookies published in 2020 will continue to apply.

III.-

Regarding the "Cookie Policy" of the website ***URL.1

Article 22 of the LSSI establishes, regarding the "Rights of recipients of information society services and electronic commerce," the following:

1. The recipient may revoke at any time the consent given to receive commercial communications by simply notifying their will to the sender.

To this end, service providers must enable simple and free procedures for recipients of services to revoke the consent they have given. When communications have been sent by email, this means must necessarily consist of the inclusion of an email address or another valid electronic address where this right can be exercised, and the sending of communications that do not include this address is prohibited.

They must also provide accessible information by electronic means about these procedures.

2. Service providers may use data storage and retrieval devices on the terminal equipment of recipients, provided that they have given their consent after being provided with clear and complete information about their use, in particular, regarding the purposes of data processing, in accordance with the provisions of Organic Law 15/1999, of December 13, on the protection of personal data. When technically possible and effective, the recipient's consent to accept the processing of data may be provided through the appropriate settings of the browser or other applications.

The above shall not prevent the possible storage or technical access solely for the purpose of carrying out the transmission of a communication over an electronic communications network or, to the extent that it is strictly necessary, for the provision of a service of the information society expressly requested by the recipient.

Well then, in application of the provisions of Article 22 of the LSSI and taking into account what is established in the Guide on Cookies-2020, we can ascertain the following regarding the "Cookie Policy" of the website ***URL.1

a).- Regarding the installation of cookies on the terminal equipment prior to consent:

Article 22.2 of the LSSI establishes that users must be provided with clear and complete information about the use of storage devices and

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data recovery and, in particular, regarding the purposes of data processing.

This information must be provided in accordance with the provisions of the GDPR.

Therefore, when the use of a cookie involves processing that allows for the identification of the user, the data controllers must ensure compliance with the requirements established by data protection regulations.

However, it is necessary to point out that cookies necessary for the intercommunication of terminals

and the network, as well as those that provide a service expressly requested by the user, are exempt from the obligations established in Article 22.2 of the LSSI.

In this regard, the GT29, in its Opinion 4/2012, interpreted that among the exempted cookies would be the "User Input Cookies" (those used to fill out forms, or for managing a shopping cart); authentication or user identification cookies (session cookies); user security cookies (those used to detect erroneous and repeated attempts to connect to a website); multimedia player session cookies; session cookies for load balancing; user interface customization cookies; and some plug-in cookies for sharing social content.

These cookies would be excluded from the scope of Article 22.2 of the LSSI, and therefore, it would not be necessary to inform or obtain consent for their use. Conversely, it will be necessary to inform and obtain the prior consent of the user before using any other type of cookies, whether first-party or third-party, session or persistent.

In the verification carried out by this Agency on the website in question, it was found that upon entering the website for the first time, without accepting cookies or taking any action on it, 3 cookies are used, two of which have been detected as strictly necessary ("utag_main" and "userAgentInfo") and another (__bg_cxbnk_fpcachecc), whose purpose could not be detected.

Therefore, in this case, there is no evidence to infer that the use of cookies by the website in question, prior to the user's consent, contradicts what is stipulated in the LSSI.

b).- Regarding the cookie information banner present on the first layer (main page):

The cookie banner on the first layer must include information regarding the identification of the publisher responsible for the website, in case their identifying data does not appear in other sections of the page or their identity cannot be clearly inferred from the site itself. It must also include a generic identification of the purposes of the cookies that will be used and whether they are first-party or also third-party, without the need to identify them in this first layer. Additionally, it must include generic information about the type of data that will be collected and used in case user profiles are created, and it must include information on how the user can accept, configure, and reject the cookies.

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use of cookies, with the warning, where applicable, that if a certain action is taken, it will be understood that the user accepts the use of cookies. In the case at hand, the cookie information banner present on the first layer of the website generically identifies the purposes for which cookies will be used and whether they are first-party or third-party cookies.

"(...) CaixaBank uses its own cookies and third-party cookies to analyze your browsing for statistical, personalization (e.g., language), and advertising purposes, including showing you personalized advertising based on a profile created from your browsing (...)"

Therefore, in this case, according to the evidence available at this time, it is considered that the information provided about the "cookie policy" in the information banner on the main page does not contradict what is stipulated in the LSSI.

c).- Regarding consent to the installation of cookies on the terminal equipment:

For the use of non-exempt cookies, it is necessary to obtain the user's express consent. This consent can be obtained by clicking on "accept" or inferring it from an unequivocal action taken by the user that indicates that consent has been unequivocally given. Therefore, mere inactivity of the user, scrolling, or navigating the website will not be considered, for these purposes, a clear affirmative action under any circumstances and will not imply the provision of consent by itself.

Similarly, access to the second layer if the information is presented in layers, as well as the navigation necessary for the user to manage their preferences regarding cookies in the control panel, is also not considered an active behavior from which acceptance of cookies can be derived.

The existence of "Cookie Walls" is also not permitted, that is, pop-up windows that block content and access to the website, forcing the user to accept the use of cookies in order to access the page and continue browsing without offering the user any alternative that allows them to freely manage their

preferences regarding the use of cookies.

If the option is to go to a second layer or cookie control panel, the link must take the user directly to that configuration panel. To facilitate selection, in the panel, in addition to a granular cookie management system, two more buttons may be implemented, one to accept all cookies and another to reject them all. If the user saves their choice without having selected any cookies, it will be understood that they have rejected all cookies. In relation to this second possibility, pre-checked boxes in favor of accepting cookies are not admissible under any circumstances.

If the website refers to the configuration of the installed browser for cookie settings, this option could be considered complementary for obtaining consent, but not as the only mechanism. Therefore, if the publisher

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If this option is chosen, it must also provide, in any case, a mechanism that allows the rejection of the use of cookies and/or to do so in a granular manner.

In the case at hand, although there is no button in the information banner of the first layer that allows rejecting all cookies that are not technical or necessary, it is possible to reject them all at once through the control panel or to do so in a granular manner.

Therefore, in this case, based on the evidence available at this time, it is considered that the management of cookies that are not technical or necessary by the website does not contradict what is stipulated in the LSSI.

d).- The possibility of withdrawing previously granted consent for the use of cookies

The withdrawal of previously granted consent by the user may be done at any time. To this end, the publisher must provide a mechanism that allows for easy withdrawal of consent at any time. It will be considered that such ease exists, for example, when the user has simple and permanent access to the cookie management or configuration system.

If the publisher's cookie management or configuration system does not allow for the prevention of the use of third-party cookies once accepted by the user, information will be provided about the tools offered by the browser and third parties, warning that if the user accepts third-party cookies and subsequently wishes to delete them, they must do so from their own browser or the system enabled by third parties for that purpose.

In the case at hand, it is possible to modify the consent granted for the use of non-technical or necessary cookies at any time during web browsing, through the link <>, located at the bottom of the webpage, through which the cookie control panel appears to modify the initial selection made.

Therefore, in this case, based on the evidence available at this time, the possibility of withdrawing consent at any time through the link available at the bottom of the website <> does not contradict what is stipulated in Article 22 of the LSSI.

Therefore, in accordance with what has been indicated by the Director of the Spanish Agency for Data Protection,

IT IS AGREED:

FIRST: TO PROCEED TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to the entity CAIXABANK, S.A and to the complainant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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Against this resolution, which concludes the administrative process as provided by Article 114.1.c) of

Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Mar España Martí

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